

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PAUL LAMIN STEWART,

Petitioner

VS.

TATJANA NEREU,

Respondent

) Case Number: FPT-23-378171

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF VISITATION
TENTATIVE RULING

The parties are ordered to appear via Zoom or in person at 9AM on 5/26/2026 in Department 404.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Paul Stewart (Father) and Tatjana Nereu (Mother) have one minor child together, Sekou (DOB 10/24/2021, age 5). The parties have shared joint legal and physical custody of Sekou pursuant to this Court's 12/17/2024 Statement of Decision. A Findings and Order After Hearing filed 9/29/2025 sets forth the parties' current parenting time schedule, which includes a regular week-on, week-off schedule and a holiday schedule. Father lives in San Francisco; Mother lived in Sacramento and recently moved to Oakland.
- 2) On 2/24/2026, Mother filed a request for an order for: (1) Sekou to attend Lincoln Elementary School in Oakland starting with Transitional Kindergarten (T-K) for the 2026-2027 school year; (2) Sekou to live with Mother during the school week starting this fall and through each school

1 year; (3) a parenting time schedule that accommodates this school choice; and (4) an evidentiary
2 hearing.

3 3) On 3/26/2026, Father filed a responsive declaration opposing Mother's request. He seeks an order
4 permitting Sekou to remain at Rocky Mountain Participation Nursery School, where he says
5 Sekou is doing well and has "developed routines, friendships, and familiarity with the teachers
6 and classroom environment," or an order allowing him to enroll Sekou in a T-K school in San
7 Francisco.

8 4) On 5/11/2026, Father filed a supplemental declaration providing the Court with an update after
9 the parties attended mediation that Mother appears to be requesting a 2-2-3 parenting schedule
10 instead of a week-on, week-off schedule. He states this schedule would not permit him to
11 maintain his current employment. He also opposes Mother's request to have sole or primary
12 medical decision-making authority. He requests that the Court "maintain the current custodial
13 arrangement pending further mediation and/or evidentiary hearing and deny Mother's request to
14 designate herself as the 'school parent.' " He states, "If the Court is inclined to substantially
15 modify the current custodial structure or rule in Mother's favor, I respectfully request that a full
16 custody evaluation be completed before any final modification of the existing status quo."

17 5) On 5/18/2026, Mother filed a reply declaration in which she states that Father's act of enrolling
18 Sekou in a T-K program in San Francisco shows that he agrees to have Sekou enroll in T-K;
19 "[t]hus, the only remaining issue is which TK program is most suitable for Sekou." She opposes
20 Father's request for the parties to continue coparenting counseling, as she believes it is no longer
21 an effective method for the parties to work through the current issues, such as therapy for Sekou.
22 She asks that the parties attend co-parenting mediation, and that "if the Court determines that
23 mediation is not the best path forward," the parties should "engage a Parenting Coordinator (PC)
24 to help navigate our recurring issues." She asks for an order for the parties to use an app like Our
25 Family Wizard for all non-emergency communications. She reiterates her request for Sekou to
26 attend T-K in Oakland.

27 6) In addition to the above filings, both parties have filed memoranda of points and authorities in
28 support of their respective requests. Father states that Mother's request constitutes a move-away
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request to which the factors set forth in *In re Marriage of La Musga* (2006) 32 Cal.4th 1072 apply; Mother disagrees.

B. Findings and Orders

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

2) **The parties are ordered to appear in person or via Zoom video at 9AM on 5/26/2026 in Department 404.**